

Court No. - 2

Case :- WRIT - C No. - 52415 of 2012

Petitioner :- M/S Torrent Power Ltd.

Respondent :- The State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Ashutosh Srivastava

Respondent Counsel :- C.S.C.,Lalit Srivastava

Hon'ble Dilip Gupta,J.

This petition seeks the quashing of the judgment delivered by the Permanent Lok Adalat, Agra on 12th September, 2012 in Case No.22 of 2012.

It is stated that an inspection was carried out by the Inspecting Team of the petitioner and it was found that private respondent No.3 had committed theft of electricity. An assessment bill of Rs.81,433.90/- was sent by the petitioner to respondent No.3 in accordance with the provisions of the Electricity Supply Code-2005 (hereinafter referred to as the 'Code') but respondent No.3 instead of filing an appeal as provided for in the aforesaid Code file the aforesaid case No.22 of 2012 before the Permanent Lok Adalat, which by the judgment dated 12th September, 2012 has set aside the demand of Rs.81,433.90/-.

It is the submission of learned counsel for the petitioner that in the facts and circumstances of the case, the Permanent Lok Adalat did not have the jurisdiction to entertain the case and in any case, the award passed by the Permanent Lok Adalat deserves to be set aside because a perverse finding has been recorded.

Learned Standing Counsel appears for respondent No.1. Sri Lalit Srivastava has put in appearance on behalf of respondent No.3. The respondents may file a counter affidavit within four weeks. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List this petition for admission/hearing in the week commencing 17th December, 2012.

In view of the submission advanced by learned counsel for the petitioner, the operation of the judgment delivered by the Permanent Lok Adalat, Agra on 12th September, 2012 in Case No.22 of 2012 shall remain stayed till the next date of listing.

Order Date :- 8.10.2012

NSC

Court No. - 2

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Respondent :- The State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Ashutosh Srivastava

Respondent Counsel :- C.S.C.,Lalit Srivastava

Hon'ble Sanjay Misra,J.

List in the next cause list.

Interim order, if in operation, shall remain operative till the next date of listing.

Order Date :- 18.12.2012

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Court No. - 2

Case :- WRIT - C No. - 52415 of 2012

Petitioner :- M/S Torrent Power Ltd.

Respondent :- The State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Ashutosh Srivastava

Respondent Counsel :- C.S.C.,Lalit Srivastava

Hon'ble Sanjay Misra,J.

List in the next cause list.

Interim order, if in operation, shall remain operative till the next date of listing.

Order Date :- 3.1.2013

Lbm/-

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Respondent :- The State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Ashutosh Srivastava

Respondent Counsel :- C.S.C.,Lalit Srivastava

Hon'ble Sanjay Misra,J.

Passed over on the illness slip of Sri Ashutosh Srivastava learned counsel for the petitioner.

Order Date :- 30.1.2013

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